

would have heard the case. In fact, at least two Superior Court judges have already heard parts of the case. If plaintiff's logic were correct, than any judge in Fresno, or anywhere in the Central Valley for that matter, would have a conflict and would have to be disqualified. Yet plaintiff has not objected to a Fresno judge hearing the case before now.

Also, plaintiff points to no evidence of any specific conflict that any of the judges proposed by defendants might have. However, if plaintiff does have evidence of any such conflict, then she can raise it with the normal statutory procedures. As a result, the court intends to reject plaintiff's argument that no Fresno area judge may hear the matter.

However, it does appear that the parties have reached an impasse and are unable to agree on an arbitrator without court intervention. Therefore, the court intends to follow the procedure set forth in section 1281.6 and order the parties to submit lists of potential arbitrators to the court. The court will then nominate five persons from the lists. The parties may then jointly select an arbitrator from the court's list, or they may agree on a different arbitrator who is not on the list. If the parties fail to select an arbitrator within five days, then the court will select an arbitrator from the list of nominees. (Code Civ. Proc., § 1281.6.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** September 22, 2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Glover v. Guerrero et al.***
Superior Court Case No. 25CECG05407

Hearing Date: September 23, 2026 (Dept. 403)

Motion: By Defendant Maria Guerrero to Quash Service of Summons

Tentative Ruling:

To grant and quash the proof of service of summons, filed July 8, 2026, as to defendant Maria Guerrero.

Explanation:

Defendant Maria Guerrero ("Defendant") seeks to quash service of summons of the Complaint pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1).

Code of Civil Procedure section 418.10, subdivision (a)(1) provides that a defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion to quash service of summons on the ground of lack of jurisdiction of the court over him or her. Generally, the court in which an action is pending has jurisdiction over a party from the time summons is served on her. (Code Civ. Proc., § 410.50, subd. (a).) Here, the proof of service of summons, filed July 8, 2026, shows personal service of summons on July 4, 2026 as to Defendant.

Whether a proof of service is void does not depend on evidence outside the face of the record. (*Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 182.) If such a defect can be shown on the face of the proof of service, the burden falls to the plaintiff to demonstrate effective service. (*Dill v. Berquist Const. Co.* (1994) 24 Cal.App.4th 1426, 1441.) Without such a defect, the filing of a proof of service creates a rebuttable presumption that service was proper. (*Id.* at pp. 1441-1442.) There are no discernable defects on the face of the proofs of service. Accordingly, the proofs of service are presumptively valid.

Defendant submits that she does not reside at the address on the proof of service, at 7121 Street, Sanger, California, 93657, nor has did she reside at the address at the time of service. (Guerrero Decl., ¶ 4.) Moreover, Defendant submits that on the indicated date for service, she was 21 years old, not 65, as indicated in the proof of service. (*Id.*, ¶ 5.)

Based on the above, the proof of service of summons, which purported to effect personal service, is sufficiently rebutted. No opposition was filed. The motion is granted. The proof of service filed July 8, 2026 is quashed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

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